BY ORDER OF THE COMMANDER
SHAW AIR FORCE BASE

SHAW AIR FORCE BASE
INSTRUCTION 31-218

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction supplements Air Force Instruction (AFI) 31-218 (i), *Motor Vehicle Traffic Supervision* and AFMAN 31-116, *Air Force Motor Vehicle Traffic Supervision*. It assigns responsibilities and procedures for motor vehicle traffic supervision on areas under the jurisdiction of Shaw Air Force Base (SAFB). The purpose of this traffic instruction is to establish standardized procedures for motor vehicle traffic supervision and ensure safe and efficient movement of vehicles, materials, and personnel to destinations on SAFB, South Carolina. This instruction complies with the National Highway Safety Program Standards promulgated under the National Highway Safety Act of 1966. This traffic instruction assimilates, to the maximum extent possible, the South Carolina Code of Laws, Title 56, *Motor Vehicles*. This instruction establishes procedures governing motor vehicle traffic supervision, parking restrictions, and registration requirements on SAFB, SC. The provisions of this instruction apply to all personnel assigned, attached or associated with the 20th Fighter Wing (20 FW), tenant units and all other individuals, whether military or civilian, while upon SAFB or any of its property. This publication requires the collection and maintenance of information protected by the Privacy Act of 1974. The authority to collect and maintain the records prescribed by this instruction is Title 10, United States Code (USC) § 8013. Each form, format, or form letter prescribed by this publication, which requires a Privacy Act Statement (PAS) in accordance with AFI 33-332, *Privacy Act Program*, must have the PAS incorporated thereon or the PAS will be prominently posted and be provided by the requester prior to collecting the information. Privacy Act information taken from an existing Privacy Act system of records, which authorizes blanket use of this information for this purpose,

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SUMMARY OF CHANGES

This publication has a minor change to Table 4.3. that enforces improper parking in a safety/fire lane by 4 points. This is to comply with South Carolina Code Section 56-5-2530 "Stopping, standing, or parking prohibited in specified places", parking within fifteen feet of a fire hydrant or between a safety zone and the adjacent curb or within thirty feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings.

Chapter 1— INTRODUCTION **4**

1.1. Program Management. 4

1.2. Responsibilities. 4

Table 1.1. Traffic Safety Coordination Group. 4

1.3. Delegation of Authority. 5

Chapter 2— DRIVING PRIVILEGES **6**

2.1. Requirements for Driving Privileges. 6

2.2. Stopping and Inspecting Personnel or Vehicles. 6

2.3. Implied Consent to Blood, Breath, or Urine Tests. 6

2.4. Implied Consent to Vehicle Impoundment. 6

2.5. Suspension or Revocation of Driving Privileges. 7

2.6. Reciprocal Procedures. 10

2.7. Administrative Due Process for Suspensions and Revocations. 10

2.8. ADAPT Programs. 12

2.9. Restoration of Driving Privileges on Acquittal. 12

2.10. Restricted Driving Privileges or Probation. 13

2.11. Extensions of Suspensions and Revocations. 13

2.12. Reciprocal State - Military Action. 14

Chapter 3— TRAFFIC PLANNING AND CODES 15

3.1. Traffic Planning. 15

3.2. SAFB Traffic Code. 15

3.3. Traffic Law Enforcement Principles. 18

3.4. Speed Measuring Devices. 19

3.5. Traffic Accident Investigation. 20

3.6. Traffic Accident Investigation Reports. 20

3.7. Use of Traffic Accident Investigation Report Data. 22

3.8. Parking. 22

3.9. Traffic Violation Reports. 26

Chapter 4— DRIVING RECORD AND TRAFFIC POINT SYSTEM 30

4.1. Driving Records. 30

Table 4.1. Suspension/Revocation of Driving Privileges. 31

4.2. The Traffic Point System. 32

4.3. Point System Application. 33

Table 4.2. Points Assessment for Moving Violations. 34

Table 4.3. Point Assessment for Non-Moving Violations. 37

4.4. System Procedures. 38

Chapter 5— IMPOUNDING PRIVATELY OWNED VEHICLES 40

5.1. General. 40

5.2. Standard for Impoundment. 40

5.3. Towing and Storage. 41

5.4. Procedures for Impoundment. 41

5.5. Search Incident to Impoundment Based on Criminal Activity. 42

5.6. Disposition of Vehicles After Impoundment. 42

Chapter 1

INTRODUCTION

1.1. Program Management. This instruction implements policy, responsibilities, and procedures for motor vehicle traffic supervision on Air Force installations where the 20th Fighter Wing Commander (20 FW/CC) has jurisdiction. This instruction provides additional Air Force specific guidance to complement guidance found in AFI 31-218(i) and AFMAN 31-116. The objective of the traffic control program is the safe and efficient flow of vehicles and pedestrians through reduction of factors contributing to accidents.

1.2. Responsibilities.

1.2.1. To meet the goals and objectives necessary to establish and manage the SAFB traffic supervision program, the 20 FW/CC has created the Traffic Safety Coordination Group (TSCG). The TSCG is responsible for traffic devices, traffic signs, pavement markings, parking areas, and reserved parking areas. The TSCG should meet quarterly or at the call of the chairperson when a sufficient agenda has accumulated. It will be composed of the following officials:

Table 1.1. Traffic Safety Coordination Group.

Chairperson - Mission Support Group Deputy Director for Installation Support
Member (Alternate Chairperson) - Base Civil Engineer/CE
Recorder - Civil Engineering/CEOE
Member - Chief of Ground Safety/SEG (Wing representative)
Member - Logistics Readiness Squadron/LRS/ LGRDDO
Member - Defense Force Commander (DFC)
Member - Security Forces Plans & Programs Representative
Advisors - Pavements Engineer, Chief of Heavy Repair, Bargaining Unit Representative (Civilian Union), Base Traffic Engineer, and NCOIC, Police Services

1.2.2. Installation Defense Force Commander (DFC). The DFC is the installation commander's principal advisor on issues pertaining to the safe movement of personnel and traffic. The DFC exercises staff responsibility for directing, regulating, controlling traffic, and enforcing installation rules pertaining to traffic control. The DFC assists traffic engineers with traffic control studies to gather information on traffic problems and usage patterns.

1.2.3. Installation Safety Officer. The safety officer develops traffic accident prevention initiatives in support of the installation traffic safety program. They also help the DFC and other agencies with accident and incident investigation.

1.2.4. Installation Civil Engineering (20 CES). The 20 CES plans, designs, constructs, and maintains streets, highways, and abutting lands. The 20 CES selects, determines appropriate design, procures, constructs, installs, and maintains permanent traffic and parking control devices in coordination with the DFC and installation safety officer. They ensure traffic signs, signals, and pavement markings conform to the standards in the current Manual on Uniform Traffic Control Devices for Streets and Highways. They also ensure planning, design, construction, and maintenance of streets and highways conform to National Highway Safety Program Standards.

1.2.5. Installation Traffic Engineer. Traffic engineers conduct formal traffic engineering studies. They apply traffic engineering measures and control devices to reduce the number and severity of traffic accidents.

1.2.6. Mental Health Office. The mental health substance abuse control program provides alcohol/drug education, treatment, and rehabilitation to personnel identified with alcohol and/or drug abuse problems.

1.2.7. The 20 FW/CC, 20th Fighter Wing Safety (20 FW/SE), 20th Security Forces Squadron (20 SFS), 20th Civil Engineering Squadron (20 CES), 20th Logistics Readiness Squadron (20 LRS) (Vehicle Operations), and TSCG will review high frequency accident locations to determine methods to reduce the number of accidents.

1.2.8. Unit commanders will ensure assigned personnel (military and civilian) are aware of the requirements in AFI 31-218(i) and this instruction. Additionally, it is the responsibility of all military and civilian personnel assigned to SAFB to ensure persons they sponsor (family, friends, associates, etc.) are aware of the requirements set forth in these publications.

1.3. Delegation of Authority. The 20 FW/CC has delegated authority under this instruction to the 20th Mission Support Group Commander (20 MSG/CC) or Deputy Commander (20 MSG/CD) in his/her absence. Those selected for delegation must not occupy a law enforcement, investigative, or other position, which might lead to a conflict of interest or the appearance of such conflict during their administration of the motor vehicle traffic supervision program. 20 FW/CC must coordinate their letters of delegation through 20th Fighter Wing Judge Advocate (20 FW/JA).

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges.

2.1.1. Driving a Government Owned Vehicle (GOV) or Privately Owned Vehicle (POV) on 20 FW properties is a privilege granted by the 20 FW/CC. Persons who accept the privilege must:

2.1.1.1. Lawfully be licensed to operate motor vehicles in appropriate classifications and not be under suspension or revocation in any state or host country.

2.1.1.2. Comply with laws and regulations governing motor vehicle operations on any US military installation.

2.1.1.3. Possess, while operating a motor vehicle, and produce on request by 20 SFS personnel, the following:

2.1.1.3.1. Proof of state registration.

2.1.1.3.2. A valid state driver's license and/or AF Form 2293, *US Air Force Motor Vehicle Operator's Identification Card* as applicable to the class vehicle to be operated, supported by a DD Form 2, *Armed Forces of the United States Geneva Convention*, Common Access Card (CAC), or other appropriate identification for non-Department of Defense (DoD) civilians. Persons may drive on 20 FW properties if they have a valid International License or valid driver's license from their state or country of residence.

2.1.1.3.3. Regulatory permits or other pertinent documents relative to shipping and transportation of special cargo or occupants, when appropriate.

2.1.1.3.4. Proof of valid insurance. Proof of insurance consists of an insurance card, other documents issued by the insurance company, or digital proof that has a policy effective date, and an expiration date.

2.1.1.3.5. Operators of GOVs must have proof of authorization to operate the vehicle via AF Form 2293.

2.1.1.3.6. Proof of Rental Vehicle agreement.

2.2. Stopping and Inspecting Personnel or Vehicles. Security Forces may stop vehicles on SAFB with inherent authority from the 20 FW/CC. On-base traffic stops and inspections (other than at entry gates and restricted areas) of POVs are authorized when there is a reasonable basis to believe it is necessary to enforce a traffic regulation or when there is suspicion of criminal activity.

2.3. Implied Consent to Blood, Breath, or Urine Tests. Drivers give consent to evidential tests for alcohol or other drug content of their blood, breath, and/or urine as a condition to accepting installation driving privileges. This consent applies when lawfully stopped, detained, apprehended, or cited for any impaired driving offense committed while driving or in physical control of a motor vehicle on SAFB.

2.4. Implied Consent to Vehicle Impoundment. As a condition to accepting installation driving privileges, drivers must give their consent for the removal and temporary impoundment of their

POV if their POV is: 1) illegally parked for unreasonable periods (greater than 72 hours); 2) interfering with military operations; 3) creating a safety hazard; 4) disabled by accident or incident; 5) left unattended in, or adjacent to, a restricted, controlled, or off-limits area; and 6) abandoned. The authority to determine the existence of these conditions has been delegated to the DFC. Such persons further agree to reimburse the Air Force for the cost of towing and storage should their motor vehicle be removed or impounded.

2.4.1. The 20 FW/CC clarifies in this instruction vehicle abandonment and other terms relevant to enforcement action.

2.4.2. All vehicles deemed to be abandoned by the below conditions will be cited. Vehicles requiring to be moved must do so within 72 hours of receipt of the citation.

2.4.2.1. The owner/care taker of the vehicle cannot be identified.

2.4.2.2. A vehicle is observed with expired or no license plate.

2.4.2.3. A vehicle is in state of disrepair (i.e. extensive damage, flat tires, missing major parts, etc.).

2.4.2.4. A vehicle threatens public safety or convenience.

2.4.2.5. Vehicles left unattended or unmoved for 30 days or more.

2.5. Suspension or Revocation of Driving Privileges. The 20 MSG/CC or 20 MSG/CD has the authority to administratively suspend or revoke driving privileges on SAFB. Further, the 20 FW/CC has delegated to unit commanders the authority to administratively suspend an active duty military member's driving privileges on SAFB for a period not to exceed 90 days.

2.5.1. Suspensions.

2.5.1.1. The 20 MSG/CC or 20 MSG/CD can suspend driving privileges for serious violations or when lesser measures fail to improve a driver's performance. Measures should include counseling, remedial driving training, and rehabilitation programs if violator is entitled to these programs. The 20 MSG/CC or 20 MSG/CD may also suspend or revoke licenses for up to 12 months if a driver continually violates installation parking standards or habitually violates other standards considered non-moving in nature. Each unit commander has the prerogative and responsibility of deciding whether to suspend privileges for up to 90 days or to recommend suspension or revocation of driving privileges for greater than 90 days. The unit commander will submit specific justification to the 20 SFS/S5R if mandatory suspension or revocation is deemed appropriate or necessary. Cases involving the following violations should be considered for suspension action for a period of not less than 30 days and not more than 90 days.

2.5.1.1.1. Exceeding the speed limit by more than 10 miles per hour in conjunction with previous moving violations recorded within the past 6 months.

2.5.1.1.2. Conviction or administrative finding of three moving violations within 12 months which do not otherwise require suspension or revocation.

2.5.1.1.3. Conviction or administrative finding of three non-moving violations within a 6-month period.

2.5.1.1.4. Conviction or administrative finding of reckless driving or speed contests.

2.5.1.1.5. Conviction or administrative finding of leaving the scene (hit and run) of an accident resulting in property damage or personal injury.

2.5.1.1.6. Standards for suspension based on frequency of parking and non-moving violations are listed in Table 4.1. A sample of the Suspension letter is available by contacting 20 SFS/S5R at ext. 895-3618.

2.5.1.2. The 20 MSG/CC or 20 MSG/CD should consider suspending or revoking driving privileges for a period greater than 90 days for members whose offenses are more frequent and/or more severe than those listed above. Noncompliance with base registration requirements, violations of safety requirements or occupant restraint policy will result in the following action.

2.5.1.2.1. In most cases involving a first offense, the commander will decide whether to suspend base driving privileges for a maximum of 30 days.

2.5.1.2.2. The 20 FW/CC has authorized the issuance of a "Preliminary Suspension Letter," intended to effect the immediate suspension of driving privileges pursuant to AFI 31-218(i), paragraph 2-4. A sample of this letter is available by contacting 20 SFS/S5R at ext. 895-3618.

2.5.1.3. The 20 MSG/CC or 20 MSG/CD will immediately suspend installation GOV or POV driving privileges pending resolution of an intoxicated driving incident, which involves active duty military personnel, their family members, retired members of the military service, and DoD civilian personnel. This applies regardless of the geographic location of an intoxicated driving incident. 20 MSG/CC or 20 MSG/CD can only suspend privileges of non-DoD affiliated civilians for incidents occurring on SAFB. After a review of available evidence as specified in paragraph 2.7., suspend driver's privileges pending resolution of the intoxicated driving incident under the circumstances outlined below:

2.5.1.3.1. Refusal to take or complete a lawfully requested chemical test to determine blood alcohol content (BAC) or breath alcohol content (BrAC) for alcohol or other drugs.

2.5.1.3.2. Operating a motor vehicle with BAC or BrAC of 0.08 percent by volume or higher.

2.5.1.3.3. Operating a motor vehicle with a BAC or BrAC below 0.08 percent blood alcohol by volume if the jurisdiction in which the vehicle is operated imposes a suspension for a BAC or BrAC level below 0.08.

2.5.1.3.4. On an arrest report or other official document reasonably showing an intoxicated driving incident occurred.

2.5.1.3.5. The 20 FW/CC assimilates the following provisions of the South Carolina Vehicle Code:

2.5.1.3.5.1. CIVILIAN AND MILITARY: It is unlawful to operate a motor vehicle, including off-road vehicles, with 0.08 percent or more, by weight, of alcohol in the driver's blood. (S.C. Code, Section 23-31-420)

2.5.1.3.5.2. MILITARY ONLY: It should be noted that the Uniform Code of Military Justice (UCMJ) contains elements of "wanton or reckless" and "drunk or

impaired" operation of a motor vehicle, which apply for driving under the influence (DUI) of alcohol and drugs. Charges based on these alternative UCMJ elements may be supported by evidence of a failed field sobriety test, erratic driving, slurred speech, etc.

2.5.1.3.5.3. CIVILIAN AND MILITARY UNDER THE AGE OF 21: It is unlawful to operate a motor vehicle, including a government vehicle or off-road vehicle, while under the age of 21 years of age, with 0.02 percent or more, by weight, of alcohol in the driver's blood. (S.C. Code, Section 56-1-286)

2.5.1.3.5.4. Under the S.C. Zero Tolerance Law, failure of breath and/or blood tests or refusal to submit to, breath and/or blood samples to determine subject alcohol concentration will result in suspension or denial of the privilege to drive in South Carolina for at least 3 months. To enable the suspension/denial of these privileges, law enforcement officers will confiscate a suspect's driver's license and issue South Carolina Law Enforcement Division (SLED) Form No. ICS-010, *Advisement of Implied Consent Rights*. Seized driver's licenses will be forwarded to 20 SFS/S-2I, who will establish disposition of driving privileges/license suspension with the issuing state.

2.5.1.4. When an immediate suspension of driving privileges for a driving while intoxicated offense is warranted pursuant to AFI 31-218(i), paragraph 2-4a.(3), or this instruction, the following procedures apply:

2.5.1.4.1. Following the review of all available evidence, 20 MSG/CC or 20 MSG/CD may issue, or verbally direct the on-duty SFS, unit commander, first sergeant, or other representative to issue a preliminary suspension letter to the driver.

2.5.1.4.2. When feasible, the preliminary suspension letter should be issued to the driver in the presence of the unit commander, first sergeant, civilian supervisor, or other unit representative. If personal service of the letter is not feasible, the Security Forces shall brief the driver's first sergeant or commander of the incident and suspension and send the letter to the driver via certified mail. For on-base incidents of intoxicated driving, the letter should be issued before the release of the driver from Security Forces custody. For off-base incidents of intoxicated driving, violators must report to the Base Defense Operations Center (BDOC) within 24 hours from the time they are released from detention or custody of apprehending authorities, with their unit commander, first sergeant, civilian supervisor, or other unit representative for issuance of the letter.

2.5.2. Revocation.

2.5.2.1. The 20 MSG/CC or 20 MSG/CD will immediately revoke driving privileges for a period of not less than one year in the following circumstances:

2.5.2.1.1. A person is lawfully detained for intoxicated driving and refuses to submit to or complete tests to measure blood alcohol or drug content as required by local state law or UCMJ.

2.5.2.1.2. A conviction, nonjudicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of a driver's license for

intoxicated driving. Official documentation is required as the basis for this type of revocation action.

2.5.2.1.3. When a serious incident involving a motor vehicle occurs and immediate revocation of driving privileges is required to preserve public safety or the good order and discipline of military personnel.

2.5.2.2. The DFC develops plans and procedures to forward revocation, suspension, and driving records to gaining commanders, and to initiate appropriate staff action when receiving similar records from losing commanders of inbound personnel.

2.5.2.3. When temporary suspensions are followed by revocations, compute the revocation period from the original suspension date, exclusive of any period during which full driving privileges were restored, pending resolution of charges.

2.5.2.4. The 20 MSG/CC or 20 MSG/CD may impose multiple suspensions to run consecutively or concurrently.

2.6. Reciprocal Procedures.

2.6.1. The 20 FW/CC honors revocations issued by other installation commanders regardless of service component affiliation. Revocations remain in effect during reassignment unless the issuing authority terminates the revocation before reassignment.

2.7. Administrative Due Process for Suspensions and Revocations.

2.7.1. When considering suspending or revoking someone's driving privileges, SF personnel will notify the person in writing to tell them what action is being taken and the reason for those actions. Coordinate this notice with the base legal office.

2.7.2. Except for incidents outlined in para 2.5.1.3. and 2.5.2.1., do not suspend or revoke a person's driving privileges until the offender is notified (or reasonable attempts made) and offered an administrative hearing. 20 MSG/CC or 20 MSG/CD determines when a suspension or revocation takes effect once making or attempting this written notice. Only in unusual circumstances should Security Forces personnel make verbal notifications. Unless an application for a hearing is made within the prescribed period, suspension or revocation takes place on the prescribed date and time. 20 MSG/CC or 20 MSG/CD determines the time period for a suspension or revocation action after receiving a request for an administrative hearing. For offenses outlined in para 2.5.1.3. and 2.5.2.1., 20 FW/CC will authorize an immediate preliminary suspension based on reliable evidence. Such evidence can include witness statements, a military or civilian police report, chemical test results, a refusal to complete chemical testing, video recordings, written statements, field sobriety test results, and/or other evidence.

2.7.2.1. The 20 MSG/CC or 20 MSG/CD must conduct evidence reviews as soon as possible but no later than 3-duty days following final assembly of evidence.

2.7.2.1.1. The 20 MSG/CC or 20 MSG/CD are designated hearing officers for suspensions or revocations. If a hearing is requested, units will coordinate with 20 SFS/S5R to schedule the hearing. Unit commanders are designated as hearing officers for suspensions of 90 days or less. The DFC will complete preliminary revocation of driving privileges for intoxicated driving offenses after reviewing all reliable evidence.

2.7.2.1.1.1. If a unit commander revokes or suspends the driving privileges of an active duty military member, this member shall have the right to appeal the suspension to the 20 MSG/CC. In cases involving active duty military members or civilian employees, the appeal or request for reconsideration shall be forwarded through the individual's unit commander, 20 FW/JA, and 20 SFS/S5R to the DFC for reconsideration. Appeals or requests for reconsideration shall be made, in writing, within 5-duty days from the date the driver is notified of the revocation or suspension resulting from the administrative hearing.

2.7.2.2. For active duty military personnel, send a written notice of preliminary suspension for intoxicated driving to their commander or reasonable equivalent. For non-installation, non-DoD affiliated civilians, present the written notice of preliminary suspension for intoxicated driving either in person (preferred) or by certified mail. If the individual is employed on the installation, send the notice to their commander or reasonable equivalent.

2.7.2.3. Advise the individual of the following in the preliminary suspension notification for intoxicated driving:

2.7.2.3.1. Suspension can be made a revocation under the authority of paragraph 2.5.2. of this instruction.

2.7.2.3.2. The right to request restoration of driving privileges pending investigation or resolution of the incident (direct request letters to the 20 MSG/CC).

2.7.2.3.3. The right of military personnel to present evidence and witnesses and be represented by a civilian counsel (at their own expense) or assigned military counsel. Commanders determine the availability of specific (by name) military counsel requests.

2.7.2.3.4. The right of DoD civilian employees to have a personal representative present at the administrative hearing in accordance with applicable laws and instructions.

2.7.2.3.5. Amount of time the individual has to respond and request the administrative hearing before the preliminary suspension or revocation becomes permanent.

2.7.2.3.6. Direction to sign the acknowledgment of receipt and to return the signed letter to the address shown in the letter.

2.7.2.3.7. Requested hearings must take place within a reasonable period which is determined by 20 MSG/CC. A preliminary suspension for intoxicated driving remains in effect until the 20 MSG/CC makes a final decision. However, if no decision is made within 30 calendar days of the preliminary suspension or revocation hearing, restore full driving privileges until the accused is notified of the final hearing results.

2.7.2.4. Members may request a hearing before the 20 MSG/CC for on-base offenses. ***NOTE***: Revocations or restrictions resulting from off-base incidents are subject to the laws and codes of the state of South Carolina, and cannot be overturned by a military entity. Requests for hearings must be in writing and submitted within 10 working days of receipt of the preliminary revocation letter. If a member does not request a hearing, driving privileges are revoked for 1 year effective the date retroactive to the date of the initial preliminary suspension letter.

2.7.3. Hearings for intoxicated driving will cover only the pertinent issues of whether: 1) the law enforcement official had reasonable grounds to believe the person was driving or was in physical control of a motor vehicle while under the influence of alcohol or other drugs; 2) the person was lawfully cited or apprehended for an intoxicated driving offense; 3) the person was asked to submit to a test for alcohol or other drug content of blood, breath, or urine and was informed of the consequences for refusing to take or complete such a test; 4) the person refused to submit to the test for alcohol, breath, or urine; failed to complete the test; submitted to the test and the result exceeded the amount of allowed blood alcohol content; results indicate the presence of other drugs for an on-installation apprehension or in violation of state laws for an off-installation apprehension; and 5) the testing methods used were valid and reliable, and the results were accurately recorded and evaluated.

2.7.3.1. For on-base incidents of DUI involving DoD civilian personnel employed on-base, the unit supervisor will be contacted and briefed. A supervisor who does not wish to respond will be briefed over the phone on the available evidence. Regardless of whether the individual is an employee of the base or not, the detaining Security Forces member will issue the suspension notice to the individual. In any other situation involving civilians where notification cannot be made in person to the sponsor, notification of suspension should be attempted by certified mail through 20 SFS/S5R. These notices will be prepared by 20 SFS/S5R with coordination through 20 FW/JA.

2.7.3.2. Upon completion of the suspension or revocation, reinstatement of driving privileges is <u>not</u> automatic. The unit commander must ensure the individual successfully completes Course V, *Driver Improvement Program* as outlined in AFI 91-207. (This course must be administered by 20 FW/SE.) If the suspension or revocation was due to driving while intoxicated, Course V is not required but successful completion of Alcohol and Drug Abuse Prevention and Treatment (ADAPT) program must be verified through the 20th Medical Group (20 MDG). If the suspension or revocation was due to not having proper insurance, the unit commander must ensure there is proof of compliance prior to approving and forwarding the individual's request for reinstatement of driving privileges to 20 SFS/S5R. Contact 20 SFS/S5R for a sample request for reinstatement of driving privileges letter.

2.8. ADAPT Programs. Refer military personnel involved in any intoxicated (drug or alcohol) motor vehicle incident to ADAPT clinic for evaluation.

2.9. Restoration of Driving Privileges on Acquittal. When an official report or finding determines lack of guilt (not guilty) or when charges are dismissed or reduced to an offense not amounting to intoxicated driving, vacate the suspension of driving privileges except when:

2.9.1. The preliminary suspension was based on refusal to take a chemical test.

2.9.2. Operating a motor vehicle with a BAC/BrAC of 0.08 percent by volume or higher or in violation of the law of the jurisdiction being assimilated on SAFB.

2.9.3. The individual was driving or in physical control of a motor vehicle while under another preliminary suspension or revocation.

2.9.4. The state authorities made an administrative determination to suspend or revoke driving privileges based on local law or pertinent regulations.

2.9.5. The individual failed to complete a formally directed substance abuse or driver's training program.

2.9.6. Policy on reinstatement of driving privileges following revocation or suspension is as follows: driving privileges are automatically restored the day following the last day of suspension, for suspension of 90 days or less. Renewal or restoration of driving privileges following a revocation or suspension period of more than 90 days must be requested in writing to 20 SFS/S5R. The letter must be endorsed by the unit commander, and should ensure requirements of this instruction have been completed.

2.10. Restricted Driving Privileges or Probation.

2.10.1. Without due cause, do not grant restricted driving privileges, probation, or reinstatement to any individual whose civilian driver's license is under suspension or revocation by a state, federal, or host nation licensing authority. If absolutely necessary to do so (and for on base privileges only), coordinate with the 20 FW/JA.

2.10.2. Written permission for restricted driving privileges will be obtained from the 20 MSG/CC or 20 MSG/CD. When an individual has been authorized restricted driving privileges, a copy of the limitation letter will be provided to 20 SFS/S5R. The individual will keep a copy of the limitation letter on his/her person or in the vehicle while operating the vehicle. Limited driving privileges must be specific, indicating the type of limitation and the time and date privileges will be reinstated. If the suspension or revocation was the result of civil court action, close coordination with 20 FW/JA regarding any restricted driving privileges is required.

2.10.2.1. Driving while driver's license, permit, or driving privileges are suspended or revoked. No military member or non-military member whose driver's license or privilege to drive a motor vehicle has been suspended or revoked, or by operation of law pursuant to this instruction or who has been forbidden, as prescribed by instruction, or by the 20 FW/CC, to operate a motor vehicle within the confines of SAFB shall drive any motor vehicle or any self-propelled machinery or equipment on any roadway within the confines of SAFB until the period of such suspension or revocation has been terminated.

2.10.2.2. Requests to allow operation of government vehicles during a period of suspension or revocation must be justified by the unit commander as mission essential.

2.10.3. The 20 MSG/CC or 20 MSG/CD may consider the reinstatement of driving privileges for individuals awaiting the results of civil court action.

2.11. Extensions of Suspensions and Revocations.

2.11.1. The suspension or revocation period will be increased by 2 years when someone is discovered driving in violation of their original suspension or revocation.

2.11.2. The suspension or revocation of installation driving privileges will be extended until the offender completes an approved remedial driver training course, drug or alcohol program, or other program deemed necessary by this instruction or local authorities.

2.11.2.1. The unit commander may schedule personnel for remedial driver's training when reliable evidence indicates that the training would be beneficial to the individual. 20 SFS/S5R will be notified of course completion. Individuals should be considered for remedial training for the following:

2.11.2.2. When the individual is determined to be at fault in any vehicle accident involving personal injury.

2.11.2.3. When determined by an accident investigation board or the unit commander that the individual needs the training.

2.12. Reciprocal State - Military Action.

2.12.1. Statutory authorities exist within some states for reciprocal suspension and revocation of driving privileges.

2.12.1.1. Use the following procedures if statutory authority does not provide for formal military reciprocity:

2.12.1.1.1. When such authority suspends or revokes a license, automatically terminate the individual's installation GOV and POV driving privileges. Take only comparable military administrative actions (suspensions, revocation, or point assessment) for those off-base violations reported by local or state authorities.

2.12.1.1.2. Notify the licensing authority of the state where a license is issued when revoking a person's installation driving privileges (for a period of one year or more only) following final adjudication of an intoxicated driving offense or for refusal to submit to a BAC/BrAC test. Include in the notification the basis for the revocation and the BAC/BrAC level.

Chapter 3

TRAFFIC PLANNING AND CODES

3.1. Traffic Planning.

3.1.1. The 20 FW/CC approves traffic circulation plans that provide for the safest and most efficient use of primary and secondary roads. A major focus of installation traffic planning is circulation control. The base traffic engineer, DFC, safety officer, and other concerned staff agencies develop the traffic circulation plan. Consult with highway engineering representatives from adjacent civilian communities to ensure SAFB plan is compatible with plans developed by the state and surrounding local communities. As a minimum, the traffic plan should consider the following:

3.1.1.1. Normal and peak vehicle routing based on traffic control studies.

3.1.1.2. Effective control of traffic, using planned traffic flow patterns which include measures for special events and adverse road conditions.

3.1.1.3. Traffic point control at congested locations by law enforcement personnel or designated traffic directors or wardens.

3.1.1.4. Use of traffic control signs and devices.

3.1.1.5. Efficient use of available parking facilities.

3.1.1.6. Efficient use of mass transportation.

3.1.1.7. The 20 FW/CC should appoint a primary and alternate base traffic engineer. The engineer directs, develops, and staffs the base traffic circulation plan. This is a civil engineering responsibility and those considered for the position should have an infrastructure planning and engineering background.

3.1.2. Traffic control studies provide factual data on existing roads, traffic density, flow patterns, and points of congestion. The traffic engineer usually conducts coordinated traffic control studies to obtain accurate data. This data helps determine major and minor routes, locations for traffic control devices, and special conditions requiring engineering or enforcement services.

3.1.3. The Military Traffic Management Command Transportation Engineering Agency (MTMC-TEA) will help 20 FW/CC solve complex highway traffic engineering problems. MTMC-TEA traffic engineering team services include:

3.1.3.1. Traffic studies of lifted areas and other special situations.

3.1.3.2. Complete studies of traffic operations for all of SAFB.

3.1.3.3. Assistance in complying with established traffic engineering standards. 20 FW/CC submit requests for MTMC-TEA assistance in accordance with AFMAN 32-1017, *DoD Transportation Engineering Program*.

3.2. SAFB Traffic Code.

3.2.1. The 20 FW/CC has established a traffic code for operation of motor vehicles on SAFB. The SAFB traffic code contains the basic rules of the road and will, to the degree possible,

conform to the traffic code of South Carolina. The DFC is responsible for developing the traffic code and for ensuring it meets all local and legal requirements, this instruction, and the standards published in the following:

3.2.1.1. *The National Highway Safety Program Standards*, as published in 23, Code of Federal Regulation (CFR) 1230.

3.2.1.2. Applicable portions of the *Uniform Vehicle Code and Model Traffic Ordinance* published by the National Committee on Uniform Traffic Laws and Ordinances, which is contained in 23, CFR 1204.

3.2.1.3. DoDI 6055.04, *DoD Traffic Safety Program*.

3.2.2. The SAFB traffic code must contain policy and procedures for the towing, searching, impounding, and inventorying of vehicles. Publish these provisions and ensure they contain the following:

3.2.2.1. Violations and conditions to tow or impound a vehicle.

3.2.2.2. Procedures to notify the vehicle owner.

3.2.2.3. Procedures for towing, storing, and protecting impounded vehicles.

3.2.2.4. Procedures for disposing of vehicles after lawful impoundment.

3.2.2.5. Violators are responsible for all costs of towing, storage, and impounding of vehicles for other than evidentiary reasons.

3.2.3. Where applicable, SAFB traffic codes must supplement the various basic provisions below:

3.2.3.1. Motorcycles and mopeds. All military members operating motorcycles, regardless of location, must successfully complete and possess proof of completion for USAF Traffic Safety Course IVA (Initial Training) or IVB (Intermediate and Refresher Training) as applicable IAW AFI 91-207. For proof of completion, the Motorcycle Safety Foundation (MSF) Certification/Completion Card will suffice. All Air Force civilian personnel (DoD Civil Service employees) who operate a motorcycle while on duty, on or off SAFB and/or any other DoD installation, must attend or have attended, and possess proof of completing an approved motorcycle rider safety course. Proof of course completion will be a Certification/Completion Card.

3.2.3.1.1. Headlights will be on at all times when in operation.

3.2.3.1.2. Privately owned motorcycles must have at least a rear view mirror attached to either the left or right handle bar. GOV motorcycles are required to have mirrors attached to both the left and right side of the handlebars.

3.2.3.1.3. Operators and passengers will wear the following Personal Protective Equipment (PPE) while on SAFB: approved protective helmets, eye protection (goggles, wrap around glasses, or full-face shield designed to meet or exceed American National Standards Institute (ANSI) Standard ZZ87.1), sturdy over-the-ankle footwear that affords protection for the feet and ankles, long trousers, long-sleeved shirt or jacket, and full-fingered gloves or mittens. Gloves or mittens will be made from leather

or other abrasion-resistant materials. Riders should select PPE that incorporates fluorescent colors and retro-reflective material.

3.2.3.2. Restraint Systems.

3.2.3.2.1. Operators and passengers of all vehicles operated on SAFB must wear restraint systems. In addition, operators and passengers of GOVs must wear restraint systems when driving or riding off the installation as well. ***Exception***: to the maximum extent possible, vehicle occupants shall not ride in areas of a vehicle without fixed seats. Upon completion of a written risk management (RM) evaluation, unless time critical, and approval by the unit commander, for duty operations only, personnel may be transported in vehicles without fixed seats. Transport is limited to short distances only, if each passenger remains seated wholly within the body of the vehicle all installed seat belts are in use, the vehicle cargo area has no open sides, and no person is resting against a side area or gate that may open (See AFI 91-207 for further guidance).

3.2.3.2.2. All active duty and reserve component members on active duty must wear restraint systems while driving or riding in a POV whether on or off the installation.

3.2.3.2.2.1. South Carolina's child passenger restraint law requires that:

3.2.3.2.2.1.1. Children from birth to 1 year old, or who weigh less than 20 pounds, must be secured in a rear-facing child safety seat.

3.2.3.2.2.1.2. Children 1 through 5 years old, or who weigh between 20 to 40 pounds, must be restrained in a forward-facing child seat.

3.2.3.2.2.1.3. Children 1 through 5 years old, or who weigh between 40 to 80 pounds, must be secured in a belt-positioning booster seat.

3.2.3.2.2.1.4. Children under the age of 6 are not required to be in booster seats if they weigh more than 80 pounds or if they can sit with their backs against the car's seat and bend their legs over the seat edge without slouching.

3.2.3.2.2.1.5. Children under 6 may not sit in the front passenger seat. However, this restriction does not apply if the vehicle has no rear passenger seats or if all other rear passenger seats are occupied by children less than 6 years old.

3.2.3.2.2.1.6. Violators are subject to a $15 fine. This law does not apply to taxis, church, school and day care buses, or commercial vehicles.

3.2.3.2.3. Cars manufactured after model year 1966 require a manufacturer-approved restraint system meeting federal traffic safety standards.

3.2.3.2.4. Operators using vehicles equipped with air bags must still wear the manufacturer's primary restraint system (seat belts).

3.2.3.3. Headphones and Hands Free Devices (earphones). The wearing of headphones and earphones is prohibited while driving a motor vehicle on base.

3.2.4. Take only administrative actions (reprimand, assessment of points, loss of installation driving privileges, etc.) for off-installation violations of the SAFB traffic code.

3.2.5. At bases with concurrent or exclusive federal jurisdiction, make violations of state traffic codes applicable to base driving records when those violations are included in that state's criminal offense code. This provision is covered under the authority of Title 18 United States Code (USC) 13.

3.2.6. Off-road vehicle usage: SAFB does not have a designated area for operation of privately owned ATVs. For this reason, only government-owned ATVs may be operated on SAFB or any of its property and only for conducting official military business. Operators must successfully complete and possess proof of completion for, a Specialty Vehicle Institute of America (SVIA) safety course IAW AFI 91-207. The only accepted proof of the course completion is the SVIA Course Certification Card and wear PPE IAW AFI 91-207.

3.2.7. Those operating a non-motorized/motorized means of conveyance including but not limited to bicycles, tricycles, unicycles, skates, roller-blades, skateboards, hover boards, Segway, and scooters must wear helmets as well as any other appropriate safety gear prescribed in other SAFB, Air Force, and DoD directives. The wear of shoes, gloves, and elbow and kneepads is highly recommended. Additionally, for any wheeled form of transportation operated on sidewalks, operators must yield to all pedestrian traffic. All riders will wear PPE IAW AFI 91-207.

3.2.8. **Speed Limits.** A person operating any vehicle on Shaw AFB will do so in a careful and prudent manner, and at a rate of speed no greater than is reasonable and prudent under the conditions at the point of operation, taking into account the amount of traffic, road and present weather conditions. The maximum allowable speeds for Shaw AFB is 30 mph, unless otherwise posted; except for emergency vehicles responding to an emergency, or when hazards dictate lower speeds.

3.2.9. Noise and Music Emanating from Vehicles. Personnel operating motor vehicles on Shaw AFB will maintain vehicle stereo and radio equipment at a low enough volume to ensure the capability of hearing traffic warning signals, horns, alarms, sirens, etc. to aid in the avoidance of motor vehicle accidents, to avoid disturbing the general public, or creating sound pollution. Music, vibrations, or other sounds emanating from a vehicle with **open** or **closed windows** is too loud and will be considered **excessive** if the noise/music can be heard **10 feet** or more from the vehicle.

3.2.10. Reveille and Retreat. If you are driving a vehicle, stop if consistent with safety and mission requirements. You and your passengers should sit quietly until the music ends.

3.3. Traffic Law Enforcement Principles.

3.3.1. Traffic law enforcement should motivate drivers to operate vehicles safely within traffic laws and regulations and maintain an effective and efficient flow of traffic. Effective enforcement should emphasize voluntary compliance by drivers. Goals can be reached by developing effective programs in the following areas:

3.3.1.1. Publishing a realistic traffic code well known by all personnel.

3.3.1.2. Adopting standard signs, markings, and signals in accordance with *National Highway Safety Program Standards* (NHSPS) and the *Manual on Uniform Traffic Control Devices for Streets and Highways.*

3.3.1.3. Ensuring enforcement personnel establish courteous, personal contact with drivers and act promptly when driving behavior is improper or when observing a defective vehicle in operation.

3.3.1.4. Maintain an aggressive program to detect and apprehend those who drive with suspended or revoked privileges.

3.3.1.5. Use sound discretion and judgment in deciding when to apprehend, issue a citation, or warn the offender.

3.3.2. Enforcement activities against intoxicated driving will include:

3.3.2.1. Detecting, apprehending, and testing persons suspected of driving under the influence of alcohol or drugs.

3.3.2.2. Training law enforcement personnel in special enforcement standards, detection techniques, and equipment standards unique to SAFB and jurisdiction.

3.3.2.3. Enforcing blood-alcohol concentration standards.

3.3.2.4. Denying installation driving privileges to those whose use of alcohol or drugs prevents their safe operation of a motor vehicle.

3.4. Speed Measuring Devices. RADAR or LASER will be the standard methods used for measuring speed.

3.4.1. Equipment purchases. 20 SFS should consider purchasing the same brand and model of equipment used by their civilian counterparts. If willing and available, SLED should provide formal training and certification for the speed measurement devices.

3.4.2. Training and certification standards.

3.4.2.1. The DFC should strive to ensure operators of speed-measuring devices meet training and certification requirements prescribed by the state or jurisdiction where the installation is located. Obtain specific information on course dates, costs, and prerequisites for attending by contacting the state agency responsible for traffic radar training. Notwithstanding the above information, the DFC may establish other local training and certification programs for operators of speed-measuring devices. If exercising this option, ensure qualification and training standards are admissible as evidence and considered reliable by both military and civil authorities. This requirement applies to courts-martial, nonjudicial proceedings, and civilian courts used to prosecute civilian offenders. Coordination between the 20 FW/JA and attorney general (or equivalent) is necessary.

3.4.2.2. Develop local training programs or attend a civilian institution or manufacturer's training program if Security Forces are unable to attend local or state-sponsored radar certification courses.

3.4.2.3. The objective of civilian or manufacturer-sponsored courses is to improve the effectiveness of speed enforcement through the proper and efficient use of speed-measurement radar. On successful completion, the course graduate must know how to:

3.4.2.3.1. Describe the association between excessive speed and accidents, deaths, and injuries, and describe the traffic safety benefits of effective speed control.

3.4.2.3.2. Describe the basic principles of radar speed measurement.

3.4.2.3.3. Identify and describe Air Force speed measurement and speed enforcement policy and procedure.

3.4.2.3.4. Identify the specific radar instrument used and describe the instrument's major components and functions.

3.4.2.3.5. Demonstrate basic skills during a function check and while operating the specific radar instrument(s).

3.4.2.3.6. Demonstrate basic skills in preparing and presenting records and courtroom testimony relating to radar speed measurement and enforcement.

3.4.3. Recertification. Certify operators every three years or more frequently when required by the state or governing jurisdiction. The DFC must document and maintain certification and training standards in the unit training section. Forward records to gaining unit commanders when personnel permanent change of station (PCS).

3.4.4. Use the following sources in local training and certification programs:

3.4.4.1. State or local training guides, plans, and procedures.

3.4.4.2. Published techniques for radar speed detection and legal aspects of speed-measuring devices by the National Highway Traffic Safety Administration and the International Association of Directors of Law Enforcement Standards and Training.

3.4.5. In accordance with DoD Instruction 6055.04, (para E3.11.3.), the use of RADAR or LASER detection devices on DoD installations is prohibited. Also prohibited is the operation of a device used to transmit simulated erroneous speeds.

3.4.5.1. Motor vehicle operators will disable (turn off/disconnect) and remove from its operational mount (ex: suction cup windshield mount) any device designed to detect speed measuring equipment prior to entry onto installation. ***NOTE***: Factory installed devices must be turned off prior to vehicle entering the installation.

3.5. Traffic Accident Investigation.

3.5.1. Conduct detailed investigations and accomplish the appropriate reports of the following:

3.5.1.1. Security Forces will respond to all major accidents occurring on SAFB.

3.5.1.2. All accidents involving a fatality or personal injury.

3.5.1.3. Vehicle and private property damage over $10,000. This applies to government as well as private vehicles and property damage.

3.5.2. Accidents occurring in the housing areas north of and on Frierson Road should be investigated by local law enforcement (Sumter County Sherriff's Office (SCSO), Sumter City Police Department (SCPD), and/or South Carolina Department of Public Safety (SCDPS).

3.6. Traffic Accident Investigation Reports.

3.6.1. Mandated reporting: Traffic accidents that include any government property, damages over $10,000, disabling damages, injuries, and/or both parties involved in the accident who disagree to exchange information will remain at the scene until released by Security Forces. Involved vehicles will not be moved unless they create a traffic hazard, endanger life or are

ordered to be moved by the Security Forces personnel on scene. Drivers are responsible for reporting accidents involving POVs and GOVs, unattended vehicles, personal injury, death, and/or damaged property.

3.6.1.1. Injury is defined as any one of the following caused or aggravated by a motor vehicle accident:

3.6.1.1.1. Any condition requiring medical attention.

3.6.1.1.2. Complaint or report of pain or injury regardless if medical attention is sought.

3.6.1.1.3. Any visible injury. This includes bruises, contusions, cuts, scrapes, compression, or any other visible damage to the body.

3.6.2. Optional reporting: Traffic accidents that do not require Security Forces involvement include any non-government property, damages under $10,000, no disabling damage, no injuries, and both parties agreed to exchange information. An accident report can still be accomplished if the complainant(s) report to the BDOC at Bldg. 825.

3.6.3. Duty to Give Information. All drivers or owners of vehicles involved in accidents will provide the required information to any person injured in an accident or the driver, owner, occupant, or any other person attending any vehicle or property damaged in an accident. In all cases, the above persons will produce and surrender their ID card, permit to drive, vehicle registration, current insurance card, and inspection certificate if required to Security Forces. On-scene, Security Forces will inform vehicle drivers to exchange their own information.

3.6.4. The driver or operator of any vehicle involved in any accident resulting in the injury, death of any person, or damage which renders any vehicle inoperative will immediately stop the vehicle at the scene of the accident, remain at the scene of the accident until all reporting and on-scene investigations have been completed by Security Forces. The driver/operator will, by the quickest means possible, report the accident to the BDOC (895-3669). When a driver of a vehicle is physically incapable of giving immediate notice of an accident and there is an occupant in the vehicle at the time that is capable of doing so, or there is any other person in the immediate area who is capable of doing so, that occupant or person will notify Security Forces. Security Forces responds to all on-base major vehicle accidents (unless local conditions or policies prohibit) to accomplish the following:

3.6.4.1. Render first aid and arrange for medical assistance.

3.6.4.2. Protect personal property.

3.6.4.3. Normalize traffic.

3.6.4.4. Identify witnesses and other personnel involved.

3.6.4.5. Conduct a formal investigation.

3.6.5. Government vehicle operators will refrain from making oral or written statements to claimants or their agents regarding liability, cause of accident, or the possibility of claims approval. Additionally, they will complete the SF 91, *Operators Report of Motor Vehicle Accident*, and DD Form 518, *Accident-Identification Card*, as soon as possible at the scene of the accident and deliver it to the 20 LRS/Vehicle Operations within 24 hours.

3.7. Use of Traffic Accident Investigation Report Data.

3.7.1. Analyze data derived from traffic accident investigations to determine accident causes. When frequent accidents occur in one area, analyze location conditions, type of accidents, and other factors in an attempt to isolate causes. With the exception of privacy act information, make accident data and trend analysis available to agencies requesting the data for reporting and analytical purposes. With the exception of requests filed under the Freedom of Information Act, the DFC determines if the agencies are cleared to receive accident and incident data. Personnel requesting a copy of the 20 SFS Form 0-93, *Minor Motor Vehicle Traffic Accident Worksheet* or the AF Form 1315, *Accident Report* can contact 20 SFS/S5R, between 5 and 7-working days after the accident. Third party information is not released unless formally requested through appropriate channels.

3.7.2. Law enforcement personnel and others who prepare traffic accident investigation reports will indicate if a seat restraint was used at the time of the accident, and where applicable, if air bags deployed.

3.8. Parking.

3.8.1. Illegal parking contributes to congestion and slows traffic flow on the installation. Strong enforcement of parking rules results in better use of available parking while reducing traffic accidents and hazards. Combine enforcement with community education and awareness initiatives in areas where illegal parking is a problem. When education and awareness fails, 20 MSG/CC may authorize more serious enforcement measures such as the towing of vehicles. Do not use towing if another lesser means of enforcement such as warnings, ticketing, reprimands, revocations, etc., prove effective. When using towing the following the guidelines below:

3.8.1.1. Towing is reserved for the removal of unsafe vehicles or vehicles not registered. Some examples include double parking and blocking fire hydrants and fire lanes.

3.8.1.2. Notify drivers that certain violations or multiple violations may result in towing. Also, provide drivers a prompt opportunity to obtain release of their property.

3.8.2. Reserved Parking. The Installation Commander determines reserved parking policy for SAFB. For information on the policies/procedures for reserved parking, contact 20 CES/CEOE (895-9604). Number of available spaces, facility design and layout, traffic flow, and number of vehicles using facilities will help determine the number and location of reserved parking spaces.

3.8.2.1. Reserved parking will be generally granted according to the following priorities:

3.8.2.1.1. Handicapped spaces as required by the Americans with Disabilities Act guidelines. Only state-issued disability license plates or disabled parking placards authorize handicapped parking on base.

3.8.2.1.2. Generals, colonels, chief master sergeants, and equivalent grades of other services, and GS-14 and above.

3.8.2.1.3. Organizational commanders and first sergeants.

3.8.2.1.4. Emergency and mission essential government vehicles.

3.8.2.1.5. Visitor/Customer Service only facilities with a customer service function. These requests will be considered on a case-by-case basis. These parking spaces will have a time limit.

3.8.2.1.6. Quarterly/Monthly award winners.

3.8.2.1.7. Special parking slots (i.e., Volunteer with Permit) may be reserved at community areas, such as the commissary and the Base Exchange. The 20 MSG/CC is the approving official for all special parking requests.

3.8.2.2. Procedures. Facility managers will serve as points of contact for reserved parking designations in parking lots servicing the facility. For parking lots servicing more than one facility, requests for reserved parking designations will be coordinated with appropriate facility managers.

3.8.2.2.1. The requesting facility manager will submit a written request (AF Form 332, *Base Civil Engineer Work Request*) work order for reserved parking spaces to 20 CES, Customer Service after coordination with other facility managers, if appropriate. The requesting facility manager will also coordinate the work request with 20 SFS/S-5S and 20 FW/SE prior to submitting orders to 20 CES, Customer Service. Requests will be completed as follows:

3.8.2.2.1.1. The requesting facility manager must provide a map depicting the parking area, total spaces, number and desired location of the reserved spaces, designation for each space, and the name and duty phone.

3.8.2.2.1.2. The base traffic engineer will evaluate requests after the requestor coordinates with 20 SFS/S5R and 20 FW/SE. The base traffic engineer will submit a recommendation to the Work Order Review Board.

3.8.2.2.1.3. Requests for additional reserved parking beyond those listed in 3.8.2.1. will be rejected or approved by 20 MSG/CC. The request must be in writing to 20 MSG/CC coordinated and endorsed by 20 CES/CC, 20 SFS/CC, and 20 FW/SE.

3.8.2.2.1.4. Upon approval 20 CES will install the appropriate signage. 20 CES is the only organization authorized to install, remove, or fabricate reserved parking signs.

3.8.2.2.1.5. Submit for removal of reserved parking on AF Form 332 to 20 CES, Customer Service.

3.8.2.3. Temporary Reserved Parking. Unit commanders, or equivalent, may establish temporary parking limitations, to include reserved parking spaces or areas, to support special functions occurring on base and will do so by erecting official signs and/or barricades.

3.8.3. Unit Commanders can use parking monitors (unit personnel) to monitor and cite parking violators, especially within off-street parking facilities.

3.8.3.1. Parking monitors must be delegated by individual unit commanders, in writing, for participation in the program. 20 SFS/S3 will obtain a letter with the current monitors and maintain the letter on file. The letter should specify a minimum of one primary and alternate in the grade of E-5 or above. Parking monitors are the commander‘s

representative to issue citations for parking violations in areas under the control of their commander. Monitors will issue parking tickets via DD Form 1408, *Armed Forces Traffic Ticket*.

3.8.3.2. Monitors will be trained by Security Forces personnel on the correct way to complete the DD Form 1408 and the routing process of issued DD form 1408s to S5R. The main difference between a DD Form 1408 issued by a Security Forces member and one issued by a parking monitor is the special instructions on the back of the pink copy that direct the violator to contact the parking monitor who issued the ticket instead of Security Forces. It is important that parking monitors include how or where the violators can reach them. When contacted by the violator, the parking monitor will fill in any missing data in sections 1-10. Tickets that are incomplete or written by personnel not designated as parking monitors will not be processed and will be returned to the unit. Parking monitors will only issue tickets for areas under the control of their commander. Once the violator makes contact with the parking monitor and the parking monitor determines the citation will stand, refer to AFMAN 31-116, Air Force Motor Vehicle Traffic Supervision for processing guidance.

3.8.4. The 20 CES is responsible for the design, establishment, and construction of all roadways and parking areas on base, the installation or removal of parking lot, and traffic control signs and signals, and the design and placement of roadblocks.

3.8.4.1. All requests for construction, installation, or removal of traffic signs and markings will be submitted through 20 SFS/S-5 and 20 CES/CEOE, in turn.

3.8.5. Parking lots will be classified as "open" for all personnel (no use of parking decals) but may be limited to "patrons" (ex: The Exchange) and "special vehicles" (ex: Ambulances). Refer to 20 CES/CEOE for the location, classification, and responsible organization of parking lots on the installation.

3.8.6. Subdividing or changing parking lot boundary lines requires approval of the using organization, 20 CES/CEOE, and 20 SFS/S-3.

3.8.7. Parking Rules: All personnel driving POVs to their workplace will park in their organization's parking lot (except as necessary for implementation of the barrier plan in higher Force Protection Conditions (FPCONs)).

3.8.7.1. Vehicles will be parked only in areas specifically designated, posted, or striped as parking areas, zones, lots, or spaces. ***Exception***: unless otherwise prohibited, parallel parking is authorized on streets in base housing only on the side of the road with a sidewalk, and only facing the direction of traffic flow for that side of the road.

3.8.7.2. Maintenance and service vehicles, or POVs on official business, may stop at building entrances to load or unload cargo or equipment, providing other vehicular traffic is not obstructed and traffic hazards are not created. Once the cargo or equipment is unloaded then the vehicle must be moved.

3.8.7.3. All boats and trailers not parked in carports or garages in housing will be stored in the fenced compound behind the Shoppette and across the street from the CE Compound or off base. 20 FSS/FSC (Studio 20) controls access to this compound. There is a fee for

this storage service that must be coordinated with Studio 20, who can be reached at 895-4774.

3.8.7.4. Except as otherwise provided in this instruction, vehicles stopping or parking on two-way roadways will do so with both passenger-side wheels within 12 inches of the right curb or paved edge of the roadway.

3.8.7.5. Non-emergency vehicles will not back into diagonal parking spaces.

3.8.7.6. Vehicles in parking spaces shall not obstruct walkways.

3.8.7.7. Only motorcycles will park in designated motorcycle parking spaces, with no exceptions for inclement weather.

3.8.7.8. Parking is prohibited in the following areas:

3.8.7.8.1. In or along any areas not designated, posted, or striped for parking, including along yellow or red painted curbs.

3.8.7.8.2. In reserved spaces by those whom the space in not reserved.

3.8.7.8.3. In any area designated a bus stop zone.

3.8.7.8.4. Within 30 feet of stop signs, traffic signals, or intersections.

3.8.7.8.5. Any seeded area (also referred to as a sodded area). That is, any area with grass or intended to grow grass or other seeded plants in which parking has not been posted as authorized with the appropriate sign.

3.8.7.8.6. Within 10 feet of permanent buildings or within 20 feet of temporary buildings/facilities, unless the area is specifically designated for parking or loading/unloading is taking place.

3.8.7.8.7. Within 15 feet of a fire hydrant, in any direction.

3.8.7.8.8. Outside the white lines of parking spaces. Vehicles will not take up two parking spaces.

3.8.7.8.9. Anywhere on base roadways when the purpose is major or minor vehicle repairs. Major repairs will also not be made in base parking lots. Major repairs include: Repairing the engine, drive train, or rear end; replacing body parts; placing the vehicle on jack stands or drive-on ramps (excluding tire changing), or any repair disabling the vehicle for 6 hours or longer.

3.8.8. "For Sale" (Lemon) Lot: Personnel with POVs parked in the "For Sale" lot, east of the base Bowling Center, Bldg. 1401, will register and obtain a permit from the Studio 20. All POVs parked in the "For Sale" lot will have a current state registration and vehicle liability insurance. There is a fee for this service.

3.8.9. Recreational Vehicle (RV) Parking and Use: RVs (motor homes, fifth wheels, travel trailers, pickup truck campers, and pop-up/tent campers) pose unique problems for the installation. Their size, either alone or in conjunction with their towing vehicle, imposes challenges and obstacles to traffic. They also often require more than the single parking space allotted for POVs. The following rules govern the parking and use of RVs on base:

3.8.9.1. RVs may be stored or parked only in the following locations: In the designated Long-Term Storage Lot, completely in the driveway or carport of a base housing unit, or off base. Except trucks with campers mounted in their beds, RVs will not be parked on the street in base housing. RVs will not be stored in parking lots unless specifically designated for such vehicles.

3.8.9.2. RVs will not be occupied overnight unless registered and parked in the 20 FSS/Family Camping Area (FAMCAMP). On occasions where 20 FSS sponsors an activity and designates a parking lot for the use of RVs participating in that activity, RVs parked in the designated area may only dry camp; there will be no connection to utilities (electric, water, and sewer). Generator use will be determined for each event (suggested 0600-2200 hours). Quiet hours will be from 2200-0600.

3.8.9.3. Transient RVs may park at the Exchange, Commissary, and Shoppette for a reasonable length of time while their occupants are shopping in these facilities, but in no case will they remain overnight. Drivers will do everything possible to avoid causing obstruction to other traffic.

3.8.9.4. Small RVs, such as pickup truck campers and small Class B (conversion vans or camper vans) motor homes, may be used by personnel to commute to and from work, only as long as the vehicles, when parked, occupy no more than a single parking space.

3.8.9.5. Only trained personnel performing Security Forces duties may ticket violators. Unattended RVs in violation may be ticketed and/or towed at the owner's expense. Repeated violations may result in denial of entry to the base. Under some circumstances, owners/drivers may be barred from the base.

3.9. Traffic Violation Reports.

3.9.1. The 20 SFS/S5R will refer CVB Form 1805, *United States District Court Violation Notice* for traffic violations occurring on SAFB to the proper US Magistrate. Do not issue a CVB Form 1805 for violations in the following circumstances:

3.9.1.1. The operator is driving a GOV at the time of the violation.

3.9.1.2. A US Federal Magistrate is either not available or lacks jurisdiction to hear the matter because the violation occurred in an area where the federal government has only proprietary jurisdiction.

3.9.1.3. Mission requirements make referral of offenders impractical.

3.9.1.4. A US Magistrate is available, but the accused refuses to consent to the jurisdiction of the court and the US attorney refuses to process the case before a US district court.

3.9.2. Issue traffic violators on military installations DD Form 1408 or CVB Form 1805. The DFC determines who is authorized to issue these forms and what training must be completed before issuing either form. DD Form 1408 is issued to the following personnel: active duty personnel, cadets/midshipmen of the military academies to include the Coast Guard Academy, reservists on orders or performing inactive duty training including commuting to and from training, and guardsman in federal service under Title 10 of the United States Code. Title 10 status is reflected on the guardsman's orders. CVB Form 1805 will be issued to civilians, civilian employees, dependents, and retirees for traffic violations on the exclusive jurisdiction area of SAFB. CVB Form 1805 will be issued to juveniles for all traffic violations except for

those criminal offenses requiring a mandatory court appearance, such as shoplifting. DD Form 1408 will be issued in lieu of CVB Form 1805 when a US Magistrate system is not available.

3.9.2.1. Personnel authorized to issue DD Form 1408 after being trained by 20 SFS/S-3 personnel are as follows:

3.9.2.1.1. All Security Forces personnel.

3.9.2.1.2. Security Forces Augmentees and IMAs.

3.9.2.1.3. Parking Monitors assigned by unit commanders.

3.9.2.2. Only Security Forces personnel are authorized to issue CVB Form 1805s after receiving training from 20 SFS/S-3.

3.9.2.3. Once issued, process traffic citations (DD Form 1408 and CVB Form 1805) as follows:

3.9.2.3.1. DD Form 1408:

3.9.2.3.1.1. Citations issued by on-duty Security Forces personnel will be forwarded at the end of the shift to 20 SFS/S-3 and 20 SFS/S5R, in-turn, for processing.

3.9.2.3.1.2. If the violator does not notify 20 SFS/S5R within 5-duty days of their intent to rebut the citation, 20 SFS/S5R will complete the administrative process by writing on the back of the white copy, "**did not rebut**" and endorse the infractions on DD Form 1408. However, 20 SFS/S5R must still notify the violator's first sergeant and commander of the violation. If the violator is assigned to another installation, the citation will be forwarded to the assigned installation for action. It is the responsibility of the installation to which the member is assigned, to input the citation and complete the administrative action in Security Forces Management Information System (SFMIS).

3.9.2.3.1.3. Notification to the violator's first sergeant and commander can be accomplished either via e-mail, or Official Mail Center; however, the process must be standardized and provide accountability.

3.9.2.3.1.4. If the violator does not wish to rebut the violation, 20 SFS/S5R inputs the citation into SFMIS; the Reports and Analysis (RA) clerk will then check the appropriate response on the back of the citation and the violator requires no further action. ***NOTE:*** If through accumulation of points or offenses the violator has met the requirement to revoke/suspend their driving privileges, notify the installation commander or designee for approval. Then advise the violator's first sergeant/commander (for military members) they need to escort the member to 20 SFS/S5R for issuance of revocation/suspension letter. If unable to contact the violator of the revocation/suspension, the letter will be sent via certified mail.

3.9.2.3.1.5. Process traffic tickets, which are rebutted, as follows. The individual prepares the rebuttal, in letter format, with endorsement by his/her unit commander or first sergeant. Submit these rebuttals to the DFC, who conducts the investigation. If this investigation finds error in judgment or legal application, the DFC provides information from the investigation to the commander who submitted the rebuttal.

If the rebuttal commander and the DFC disagree on what action should be taken, forward the rebuttal letter and DFC investigative results to the 20 FW/JA for legal review and then forward to the 20 MSG/CC or 20 MSG/CD for final action.

3.9.2.3.2. CVB Form 1805:

3.9.2.3.2.1. For those citations issued by on duty Security Forces personnel, forward the traffic citation for processing on the first duty day after the issuance of the citation.

3.9.2.3.2.2. The 20 SFS/S5R processes the citation as required and forwards a scanned copy of the citation to 20 FW/JA and the white copy to the Clerk, U.S. District Court, Central Violations Bureau (CVB), San Antonio, TX. The clerk, U.S. District Court, is responsible for scheduling the appropriate court date with 20 FW/JA, recording the receipt of any collateral forfeiture received, and notifying 20 SFS/S5R of the status of each CVB Form 1805 issued.

3.9.2.3.2.3. Once the status of CVB Form 1805 (i.e. payment of collateral forfeiture, court finding and/or sentence, etc.) is known, 20 SFS/S5R will annotate it and file the citation in accordance with the prescribed directives.

3.9.3. The 20 MSG/CC will establish procedures for disposing of traffic violation cases through administrative or judicial action consistent with the UCMJ and federal law. Additionally, unit commanders will notify the ADAPT clinic of all violations of any military or DoD civilian employees under their control who are apprehended for intoxicated driving.

3.9.4. Unless restricted under the provisions of para 3.9.2., use CVB Form 1805 to refer civilian violators of state and federal traffic laws to the appropriate US magistrate. Notify the commander, first sergeant, or supervisor when any military personnel or DoD civilian employees is cited with CVB Form 1805. If requested, locally reproduce a copy of CVB Form 1805 and make it available to the commander, first sergeant, or supervisor.

3.9.4.1. Preparation of CVB Form 1805. This pre-numbered form is issued through standard publication channels and is only accountable once it is issued to an offender. Before issuing this form, stamp (type) in black ink the specific address of the clerk of the US District Court to which the violator must address the communication, on the reverse of the violator's copy (manila card stock) of the four-part form. Determine the fine, mandatory court appearance of the offender, and the date of appearance according to guidance furnished by the governing district court.

3.9.4.1.1. The preset collateral amount (per SC Code) will be entered in Box B, or Box A will be checked to indicate a mandatory appearance before a US magistrate. As prearrangements of dates and times are not feasible, if a mandatory appearance is required, the box showing time and place of the court appearance will not be filled in, but notification of a summons will be forwarded to the individual at the address given at a future date. Personnel who issue mandatory appearance violation notices will appear before the US magistrate, if required, as coordinated with 20 FW/JA.

3.9.4.2. Identify the assimilation of state traffic laws by a specific state code reference in the code section block of CVB Form 1805 or in a complaint filed with the US magistrate.

3.9.4.3. Use the statement of probable cause on CVB Form 1805 according to 20 FW/JA and US magistrate court policy. The statement of probable cause is required by the federal misdemeanor rules to support the issuance of a summons or arrest warrant.

3.9.4.4. If offenders wish to appear before a US magistrate, they do not send in the collateral amount by mail. The US Magistrate Court will inform them of their court appearance date. The US magistrate may require the posting of a bond before the hearing is scheduled.

3.9.4.5. In instances where a mandatory appearance is not required, if offenders wish to appear before a US magistrate, they do not send in the collateral amount by mail, requesting instead an appearance date by checking the appropriate line on the DD Form 1805 and mailing the DD Form 1805 to the CVB. The US Magistrate Court will inform them of their court appearance date. The US magistrate may require the posting of a bond before the hearing is scheduled.

3.9.5. Violations that warrant suspension or revocation of base driving privileges, in addition to those listed in AFI 31-218(i), may be found in Chapter 4 of this instruction. NOTE: Any individual who is on a suspension or revocation and is charged with another violation that warrants suspension or revocation is subject to the additional suspension or revocation being imposed. If imposed, the additional suspension or revocation will run consecutively to the term of the original suspension or revocation. Any individual charged with driving on the base while base driving privileges are suspended or revoked is subject to a revocation for an additional 2 years. The additional 2 years will run consecutively to the term of the original suspension or revocation.

3.9.6. On SAFB, the installation commander authorizes the use of certain evidential tests for screening individuals suspected of driving while intoxicated. These tests include the walk and turn, one leg stand, and the horizontal gaze nystagmus. Pending the results of the standardized filed sobriety tests, a sample of the suspect's breath or blood will be sought to determine their BAC. These results will be recorded on DD Form 1920, *Alcohol Influence Report*.

3.9.7. Military personnel arrested or apprehended by civil police for traffic related accidents will report this information to the BDOC within 24 hours of the incident. Failure to report this contact is a violation of Article 92, UCMJ.

Chapter 4

DRIVING RECORD AND TRAFFIC POINT SYSTEM

4.1. Driving Records. 20 SFS/S5R will use SFMIS to record traffic accidents, DD Form 1408 and CVB Form 1805 to record moving and non-moving violations, locally develop suspension or revocation actions, and traffic point assessments involving military and DoD civilian personnel, dependents, and all other personnel operating a motor vehicle on SAFB. Traffic violation points used in assessments will remain in effect for 3 years or to the extent of the current record-keeping system capability, whichever is less. Table 4.1. lists suspension/revocation periods for base driving privileges. Traffic points are not assessed for suspension or revocation actions.

Table 4.1. Suspension/Revocation of Driving Privileges.

Violation	Consequence
Driving while driver's license or installation driving privileges are under suspension or revocation.	A 2–year revocation is mandatory on determination of facts by the 20 MSG/CC.
Refusal to submit to or failure to complete chemical tests (implied consent).	A 1–year revocation is mandatory on determination of facts by the 20 MSG/CC.
Manslaughter (or negligent homicide by vehicle) resulting from the operation of a motor vehicle. Driving or being in actual physical control of a motor vehicle while under the influence of intoxicating liquor (0.08% or greater on DoD installations; violation of civil law off installation). Driving a motor vehicle while under the influence of any narcotic, or while under the influence of any other drug (including alcohol) to the degree rendered incapable of safe vehicle operation. Use of a motor vehicle in the commission of a felony. Fleeing the scene of an accident involving death or personal injury (hit and run). Perjury or making a false statement or affidavit under oath to responsible officials relating to the ownership or operation of motor vehicles. Unauthorized use of a motor vehicle belonging to another, when the act does not amount to a felony.	A 1–year revocation is mandatory on conviction.
Mental or physical impairment (not including alcohol or other drug use) to the degree rendered incompetent to drive. Commission of an offense in another State which, if committed on the installation, would be grounds for suspension or revocation. Permitting an unlawful or fraudulent use of an official driver's license. Conviction of fleeing, or attempting to elude, a police officer. Conviction of racing on the highway.	Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.
Receiving a second 1-year suspension or revocation of driving privileges within 5 years.	Loss of AM Form 2293 for a minimum of 6 months is discretionary.
Operating a motor vehicle while using a cell phone without a hands devices or texting while driving	See Table 4.2., Note 5
Failure to wear an approved safety device (seat belt, helmet).	See Table 4.2., Note 6

NOTES:

1. When imposing a suspension or revocation because of an off–installation offense, the effective date should be the same as the date of civil conviction, or the date that State or host nation driving privileges are suspended or revoked. This effective date can be retroactive.

2. No points are assessed for revocation or suspension actions. Except for implied consent violations, revocations must be based on a conviction by a civilian court or courts–martial, nonjudicial punishment under UCMJ, Art. 15, or a separate hearing as addressed in this regulation. If revocation for implied consent is combined with another revocation, such as 1 year for intoxicated driving, revocations may run consecutively (total of 24 months) or concurrently (total of 12 months). The installation commander's policy should be applied systematically and not on a case–by–case basis.

4.1.1. If an individual is operating a motor vehicle owned by another person at the time of a violation, points will be assessed against the violator and not the vehicle owner. When the vehicle owner knowingly or willingly permits an unqualified or unlicensed driver to operate their vehicle, points will be assessed against both the violator and the vehicle owner.

4.1.2. DD Form 1408 Voiding Procedures. Once a traffic ticket has been issued, normally only the issuing official may void it. The DFC, or his designees (20 SFS/S-3O), may void for obvious administrative or legal errors when an inappropriate citation has been annotated. Also, a citation may be voided when evidence or information is discovered that proves the violator of the citation did not commit the violation. The issuing/voiding official will state in writing on the reverse of the white copy the exact reason for voiding, name, rank, date, and signature. The voided form will then be forwarded to 20 SFS/S5R. ***NOTE***: This does not stop a citation from being reissued for the appropriate offense.

4.1.3. Upon receipt of DD Form 1408 or other military law enforcement report of a moving violation, unit commanders may delegate the responsibility for conducting an inquiry to their section commander, first sergeant, or a key staff agency head. Authority will not be delegated to persons below those positions.

4.1.4. DD Form 1408 which is contested by the violator and which cannot be resolved between the issuing agency and the violator's commander will be referred to 20 MSG/CC for review and final disposition. The individual issuing the ticket or completing the report may be required to provide a statement as support documentation.

4.1.5. The 20 SFS/S5R will forward an advisory letter, on behalf of the DFC, through the unit commander or supervisor, to any person accumulating six traffic points within a six-month period.

4.1.6. The 20 MSG/CC has the prerogative of suspending base driving privileges of personnel who have established unsafe driving records. Such suspensions may be made without regard to point assessment made under the system; however, each case of this type will be handled on an individual basis.

4.1.7. Personnel undergoing a PCS from SAFB are required to submit a copy of PCS orders to 20 SFS/S5R. When 20 SFS/S5R is made aware of personnel changing duty stations, they will forward an Individual History Record to the gaining commander if the individual's driving privileges have been revoked or suspended, or if the individual has accumulated traffic points.

4.1.8. Unit commanders or staff agency directors may request suspension of a military member's, a family member's, a base contractor's, or a civilian employee's driving privileges by forwarding a letter requesting suspension/revocation to 20 MSG/CC or 20 MSG/CD through 20 SFS/S5R.

4.2. The Traffic Point System. The traffic point system provides a uniform administrative device to impartially judge service personnel's driving performance. This system is not a disciplinary measure or a substitute for punitive action. Further, this system is not intended to interfere in any way with the reasonable exercise of an installation commander's prerogative to issue, suspend, revoke, deny, or reinstate installation-driving privileges.

4.3. Point System Application. The use of the point system and procedures prescribed herein are mandatory. The point system applies to civilian personnel operating government vehicles on and off the installation and to their POVs driven on-base, military personnel operating GOVs and POVs on or off the installation and to dependents and all other individuals operating POVs on the installation. Unless an individual submits a rebuttal, assess points as prescribed by this document. Also, assess points to individuals found guilty by a military or civilian court, or upon payment of fine or forfeiture of pay and allowances, or posted bond or collateral.

Table 4.2. Points Assessment for Moving Violations.

Violation	Points Assessed
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)–property damage only.	6
Driving vehicle while impaired (BAC more than 0.05 percent and less than 0.08 percent).	6
Speed contests.	6
Speed too fast for conditions.	2
Speed too slow for traffic conditions, and/or impeding the flow of traffic, causing potential safety hazard.	2
Failure of operator or occupants to use available restraint system devices while moving.	2
Failure to properly restrain children in a child restraint system while moving. Refer to Para 3.2.3.2. and Note 6).	2
One to 10 miles per hour over posted speed limit.	3
Over 10 but not more than 15 miles per hour above posted speed limit.	4
Over 15 but not more than 20 miles per hour above posted speed limit.	5
Over 20 miles per hour above posted speed limit.	6
Following too close.	4
Failure to yield right of way to emergency vehicle.	4
Failure to stop for school bus or school–crossing signals.	4
Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
Improper passing.	4
Failure to yield (no official sign involved).	4
Improper turning movements (no official sign involved).	3
Wearing of headphones/earphones while driving motor vehicles (two or more wheels).	3
Failure to wear an approved helmet and/or PPE while operating or riding on a motorcycle, MOPED, or a three or four–wheel vehicle powered by a motorcycle–like engine.	3
Improper overtaking.	3
Other moving violations (involving driver behavior only).	3
Operating an unsafe vehicle (see Note 2).	2

Driver involved in accident is deemed responsible (only added to points assessed for specific offenses).	1
Seat belt/child restraint violations (see Note 3).	2
Operating a radar detection device to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations) (see Note 4).	3
Failure to yield to pedestrians in designated walkway/crosswalk (see Note 4).	3

NOTES:

1. When two or more violations are committed on a single occasion, points may be assessed for each individual violation.

2. This measure should be used for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned out headlight not replaced within the grace period on a warning ticket).

3. Applies to not using or when child restraint system is improperly installed, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer), etc. Assess four points when no restraint system of any kind is used.

4. When violation occurs within an active school zone, add 1 point to point assessment.

5. For Cell Phone, Personal Electronic Devices (MP3 Players, Tablets, etc.) violations; and texting while driving, the following actions will also be taken:

1st Violation:
Gov/Non-Gov Vehicle: All Personnel – Citation (non-monetary).

2nd Violation:
Gov/Non-Gov Vehicle: All Personnel – Citation (non-monetary), loss of base driving privileges for 30 days.

3rd Violation:
Gov/Non-Gov Vehicle: All Personnel – Citation (non-monetary), loss of base driving privileges for 180 days.

6. For Seatbelt violations the following actions will also be taken:

1st Violation:
Non-Gov Vehicle: AD Military – Citation (non-monetary).
Non-Gov Vehicle: All Other Personnel – Citation, ($25 fine).
Gov Vehicle: All Personnel – Citation (non-monetary).

2nd Violation:

Non-Gov Vehicle: AD Military – Citation (non-monetary), loss of base driving privileges for 30 days.
Non-Gov Vehicle: All Other Personnel – Citation, ($25 fine) and loss of base driving privileges for 30 days.
Gov Vehicle: All Personnel – Citation (non-monetary), loss of base driving privileges for 30 days.

3rd Violation:
Non-Gov Vehicle: AD Military – Citation (non-monetary), loss of base driving privileges for 180 days.
Non-Gov Vehicle: All Other Personnel – Citation, ($25 fine) and loss of base driving privileges for 180 days.
Gov Vehicle: All Personnel – Citation (non-monetary), loss of base driving privileges for 180 days.

7. Points for each violation will be assessed as prescribed in instruction. Points/offenses assessed against a person will remain in effect for accumulation purposes for 24 consecutive months.

Table 4.3. Point Assessment for Non-Moving Violations.

Violation	Points Assessed
Unattended Child under 6 years of age left in vehicle. Animals are included if a danger exists to the animal. (see Note 4).	6
Improper Registration (fraudulent tags).	4
Improper parking in a safety/fire lane (see note 6)	4
Misuse of handicap decal. (see Note 2).	3
Illegally parked in designated handicap area (no decal, license or placard displayed).	3
Unattended Vehicle (while running).	3
Abandoned Vehicle.	3
Improper Parking. (see Note 3).	2
Improper Registration (expired or unregistered).	2

NOTES:

1. When two or more violations are committed on a single occasion, points may be assessed for each violation.

2. When a vehicle has a handicap decal displayed, but the occupant is not the decal or placard registrant and is not dropping off or picking up the handicapped registrant. Also includes parking in an area designated for "Van" access only, and handicap registrant has parked another vehicle class instead.

3. When designated in local parking plan (i.e., double parked, parked in reserved parking, against the flow of traffic and those areas designated for emergency vehicles).

4. When an AF Form 3545, *Incident Report*, (SFMIS report) will also be accomplished. Revocation of driving privileges for 1 year may be considered by the commander. ***Example***: If children or animals were left in dangerous conditions in vehicle, i.e., in hot weather where interior temperatures may reach dangerous levels, keys left accessible to children or where conditions are deemed hazardous by a reasonable person.

5. Emergency vehicles are authorized to park in any area deemed necessary to affect a response.

6. Parking within fifteen feet of a fire hydrant or between a safety zone and the adjacent curb or within thirty feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings as adopted by SC code **SECTION 56-5-2530.** Stopping, standing, or parking prohibited in specified places.

4.4. System Procedures.

4.4.1. Reports of moving traffic violations recorded on DD Form 1408 or CVB Form 1805 will serve as a basis for determining point assessment. For DD Form 1408, return endorsements will be required from commanders or supervisors.

4.4.2. On receipt of DD Form 1408 or SFMIS report of a moving violation, the unit commander, designated supervisor, or person otherwise designated by the 20 FW/CC will conduct an inquiry. If appropriate, the commander will take or recommend proper disciplinary or administrative action. If a case involves judicial or nonjudicial actions, the final report of action taken will not be forwarded until final adjudication.

4.4.3. On receipt of the report of action taken (including action by a US Magistrate Court on CVB Form 1805), 20 SFS/S5R will assess the number of points appropriate for the offense and record the traffic points or the suspension or revocation of driving privileges on the person's driving record. Except as specified otherwise in this instruction, points will not be assessed or driving privileges suspended or revoked when the report of action taken indicates that neither disciplinary nor administrative action was taken.

4.4.4. The 20 MSG/CC may require the following driver improvement measures, as appropriate:

4.4.4.1. Advisory letter through the unit commander or supervisor to any person who has acquired six traffic points within a 6-month period.

4.4.4.2. Counseling or driver improvement interview, by the unit commander, of any person who has acquired more than 6 but less than 12 traffic points within a 6-month period. This counseling or interview should produce recommendations to improve driver performance.

4.4.4.3. Referral for medical evaluation when a driver, based on reasonable belief, appears to have mental or physical limits that have had or may have an adverse effect on driving performance.

4.4.4.4. Attend remedial driver training to improve driving performance.

4.4.4.5. Referral to an alcohol or drug treatment or rehabilitation facility for evaluation, counseling, or treatment. This action is required for active military personnel in all cases in which alcohol or other drugs are a contributing factor to a traffic citation, incident, or accident.

4.4.5. An individual's driving privileges may be suspended or revoked as provided by this instruction regardless of whether these improvement measures are accomplished.

4.4.6. Persons whose driving privileges are suspended or revoked (for one violation or an accumulation of 12 traffic points within 12 consecutive months, or 18 traffic points within 24 consecutive months) will be notified in writing through official channels (see para 2.7.). Except for the mandatory minimum or maximum suspension or revocation periods prescribed by Table 4.1., the 20 MSG/CC will establish periods of suspension or revocation for any violation not specified in this instruction. Any revocation based on traffic points must be no less than 6 months. A longer period may be imposed based on the person's overall driving record considering the frequency, flagrancy, severity of moving violations, and the response to previous driver improvement measures. In all cases, military members must successfully

complete a prescribed course in remedial driver training before driving privileges are reinstated.

4.4.7. Points assessed against a person will remain in effect for 24 consecutive months point accumulation purposes. The review of driver records to delete traffic points should be done routinely during records update while recording new offenses and forwarding records to new duty stations. Completion of a revocation based on points requires removal from the driver record of all points assessed before the revocation.

4.4.8. Removal of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocations. Record entries will remain posted on individual driving records for the period of time indicated below.

4.4.8.1. Chargeable nonfatal traffic accidents or moving violations - 3 years.

4.4.8.2. Non-mandatory suspensions or revocations - 5 years.

4.4.8.3. Mandatory revocations - 7 years.

Chapter 5

IMPOUNDING PRIVATELY OWNED VEHICLES

5.1. General. This chapter provides the standards and procedures for SAFB when towing, inventorying, searching, impound, and disposing of POVs. This policy is based on:

5.1.1. The interests of SAFB in crime prevention, traffic safety, and the orderly flow of vehicle traffic movement.

5.1.2. The vehicle owner's constitutional rights to due process, freedom from unreasonable search and seizure, and freedom from deprivation of private property.

5.2. Standard for Impoundment.

5.2.1. SAFB only impounds a vehicle when it interferes with traffic, threatens public safety or convenience, is involved in criminal activity, contains evidence of criminal activity, or is stolen or abandoned.

5.2.2. The impoundment of a vehicle is inappropriate if any other reasonable alternative exists.

5.2.2.1. Attempts should be made to locate the owner of the POV and have the vehicle removed.

5.2.2.2. The vehicle may be moved a short distance to a legal parking area and temporarily secured until the owner is found. Security Forces will not drive the vehicle without consent from the owner.

5.2.2.3. Another responsible person to drive or tow the POV, if they first have permission from the owner, operator, or person empowered to control the vehicle. However, in such cases, Security Forces (or towing contractor) is not responsible for safeguarding the vehicle.

5.2.3. Impounding of POVs is justified when any of the following conditions exist:

5.2.3.1. The POV is illegally parked.

5.2.3.1.1. On a street or bridge, is double parked, and/or interferes with the orderly flow of traffic.

5.2.3.1.2. On a sidewalk, within an intersection, on a crosswalk, on a railroad track, in a fire lane, or is blocking a driveway, so that the vehicle interferes with operations or creates a safety hazard to other roadway users or the general public. Example: a vehicle parked within 15 feet of a fire hydrant or blocking a properly marked driveway of a fire station or aircraft-alert crew facility.

5.2.3.1.3. Blocking an emergency exit door of any public place (theater, Carolina Skies Club, CMSgt Emerson E. Williams Dining Facility, Medical Group, and other facilities).

5.2.3.1.4. In a "tow–away" zone that is so marked with proper signs.

5.2.3.2. The POV interferes with:

5.2.3.2.1. Street cleaning operations and attempts to contact the owner have been unsuccessful.

5.2.3.2.2. Emergency operations during a natural disaster or fire or must be removed from the disaster area during cleanup operations.

5.2.3.3. The POV has been used in a crime or contains evidence of criminal activity.

5.2.3.4. The owner or person in charge has been apprehended and is unable or unwilling to arrange for custody or removal.

5.2.3.5. The POV is mechanically defective and is a menace to others using the public roadways.

5.2.3.6. The POV is disabled by a traffic incident and the operator is either unavailable or physically incapable of having the vehicle towed to a place of safety for storage or safekeeping.

5.2.3.7. Security Forces personnel reasonably believe the vehicle is abandoned.

5.3. Towing and Storage.

5.3.1. Impounded POVs will be towed and stored by a civilian wrecker service.

5.3.2. The civilian wrecker service ensures accountability and security of towed vehicles is maintained. The civilian wrecker service will maintain all keys and will be available 24 hours a day, every day, to allow entry to Security Forces personnel, as needed.

5.3.3. Temporary impoundment and towing of POVs for violations of the installation traffic code or involvement in criminal activities will be accomplished under the direct supervision of Security Forces personnel.

5.4. Procedures for Impoundment.

5.4.1. Unattended POVs.

5.4.1.1. DD Form 2504, *Abandoned Vehicle Notice*, will be conspicuously placed on POVs considered unattended. This action will be documented by an entry in AF Form 53, *Security Forces Desk Blotter*.

5.4.1.2. The owner will be allowed 3 days from the date the POV is tagged to remove the vehicle before impoundment action is initiated. If the vehicle has not been removed after 3 days, it will be removed by the civilian wrecker service. DD Form 2505, *Abandoned Vehicle Removal Authorization*, will be completed and issued to the civilian wrecker service driver by the Security Forces personnel.

5.4.1.3. After the vehicle has been removed, Security Forces will complete DD Form 2506, *Vehicle Impoundment Report,* as a record of the actions taken.

5.4.1.3.1. An inventory listing personal property will be done to protect the owner, Security Forces personnel, the civilian wrecker service, and 20 FW.

5.4.1.3.2. The contents of a closed container such as a suitcase inside the vehicle need not be inventoried. Such articles should be opened only if necessary to identify the owner of the vehicle or if the container might contain explosives or otherwise present a danger to the public. Merely listing the container and sealing it with security tape will suffice.

5.4.1.3.3. Personal property must be placed in a secure area for safekeeping.

5.4.1.4. DD Form 2507, *Notice of Vehicle Impoundment,* will be forwarded by certified mail to the address of the last known owner of the vehicle to advise the owner of the impoundment action, and to request information concerning the owner's intentions pertaining to the disposition of the vehicle.

5.4.2. Stolen POVs or Vehicles Involved in Criminal Activity.

5.4.2.1. When the POV is to be held for evidentiary purposes, the vehicle should remain in the custody of AFOSI or 20 SFS/S2I until law enforcement purposes are served.

5.4.2.2. Recovered stolen POVs will be released to the registered owner, unless held for evidentiary purposes, or to the law enforcement agency reporting the vehicle stolen, as appropriate.

5.4.2.3. A POV held on request of other authorities will be retained in the custody of AFOSI or 20 SFS/S2I until the vehicle can be released to such authorities.

5.5. Search Incident to Impoundment Based on Criminal Activity. Search of a POV in conjunction with impoundment based on criminal activity will likely occur in one of the following general situations:

5.5.1. The owner or operator is not present. This situation could arise during traffic and crime–related impoundments and abandoned vehicle seizures. A property search related to an investigation of criminal activity should not be conducted without search authority unless the item to be seized is in plain view or is readily discernible on the outside as evidence of criminal activity. When in doubt, proper search authority should be obtained before searching. Consult with the 20 FW/JA for further guidance.

5.5.2. The owner or operator is present. This situation can occur during either a traffic or criminal incident, or if the operator is apprehended for a crime or serious traffic violation and sufficient probable cause exists to seize the vehicle. This situation could also arise during cases of intoxicated driving or traffic accidents in which the operator is present but incapacitated or otherwise unable to make adequate arrangements to safeguard the vehicle. If danger exists to Security Forces or public or if there is risk of loss or destruction of evidence, an investigative type search of the vehicle may be conducted without search authority. Consult with the 20 FW/JA for further guidance.

5.6. Disposition of Vehicles After Impoundment.

5.6.1. If a POV is impounded for evidentiary purposes, the vehicle can be held for as long as the evidentiary or law enforcement purpose exists. The vehicle must then be returned to the owner without delay unless directed otherwise by competent authority.

5.6.2. If the vehicle is unclaimed after 120 days from the date notification was mailed to the last known owner or the owner released the vehicle by properly completing DD Form 2505, the vehicle will be disposed of by one of the following procedures:

5.6.2.1. Release to the lienholder, if known.

5.6.2.2. Process as abandoned property in accordance with DoD 4160.21–M.

5.6.2.2.1. Property may not be disposed of until diligent effort has been made to find the owner; or the heirs, next of kin, or legal representative of the owner.

5.6.2.2.2. The diligent effort to find one of those mentioned in paragraph 5.6.2.2.1, above, shall begin no later than 7 days after the date on which the property comes into custody or control of the 20 SFS.

5.6.2.2.3. The period for which this effort is continued may not exceed 45 days.

5.6.2.2.4. If the owner or those mentioned in paragraph 5.4.2.3, above, are determined, but not found, the property may not be disposed of until the expiration of 45 days after the date when notice, giving the time and place of the intended sale or other disposition, has been sent by certified or registered mail to that person at his or her last known address.

5.6.2.2.5. When diligent effort to determine those mentioned above is unsuccessful, the property may be disposed of without delay, except that if it has a fair market value of more than $500, 20 SFS personnel may not dispose of the property until 45 days after the date it is received at the storage point.

5.6.3. All contracts for the disposal of abandoned vehicles must comply with 10 USC 2575.

DEREK J. O'MALLEY, Colonel, USAF
Commander
END SIGNATURE

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

South Carolina Criminal Law and Motor Vehicle Handbook, 2011-2012
Code of Federal Regulation, Title 32, Part 634, Motor Vehicle Traffic Supervision, 15 February 2012
Code of Federal Regulation, Title 49, Part 571, Federal Motor Vehicle Safety Standards, 1 October 2000

DoD 4160.21-M*, Defense Materiel Disposition Manual*, 18 August 1997
DoDD 5525.4*, Enforcement of State Traffic Laws on DoD Installations*, 2 November 1981
DoDI 6055.04*, DoD Traffic Safety Program*, 20 April 2009

AFFARS Part 5352.242-9000, *Contractor Access to Air Force Installations*, August 2007
AFPD 31-1*, Integrated Defense*, 28 October 2011
AFI 31-101, *Integrated Defense* (ID) (FOUO), 5 July 2017

AFI 31-120, *Security Forces Systems and Administration*, 1 April 2015
AFMAN 31-116, *Air Force Motor Vehicle Traffic Supervision*, 18 December 2015
AFMAN 31-201 Volume 3*, Flight Operations*, 24 August 2009

AFI 24-302, *Vehicle Management*, 26 June 2012
AFI 31-218(i), DoD Motor *Vehicle Traffic Supervision*, 22 May 2006, Certified 14 July 2017
AFI 51-905, *Use of Magistrate Judges for Trial of Misdemeanors Committed by Civilians*, 30 September 2014

AFI 91-207*, The U.S. Air Force Traffic Safety Program*, 16 February 2017, Certified 15 May 2017

Prescribed Forms
20th Security Forces Form 0-93, Minor Motor Vehicle Traffic Accident Worksheet***Adopted***

Adopted Forms

AF Form 171, *Request for Driver's Training and Addition to U.S. Government Driver's License*

AF Form 332, *Base Civil Engineer Work Request*

AF Form 847, *Recommendation for Change of Publication*

AF Form 1315, *Accident Report*

AF Form 3545, *Incident Report*

CVB Form 1805, *Violation Notice, United States District Court* (special order through CVB)

DD Form 518, *Accident Identification Card*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 1920, *Alcohol Influence Report*

DD Form 2504, *Abandoned Vehicle Notice*

SF 91, *Operators Report of Motor Vehicle Accident*

Abbreviations and Acronyms

20 CES – 20th Civil Engineer Squadron

20 CES/CEOE – 20th Civil Engineer Squadron Pavement Engineer

20 FSS – 20th Force Support Squadron

20 FW/CC – 20th Fighter Wing Commander

20 FW/JA – 20th Fighter Wing Judge Advocate

20 FW/SE – 20th Fighter Wing Safety

20 LRS – 20th Logistics Readiness Squadron

20 MDG – 20th Medical Group

20 MSG/CC – 20th Mission Support Group Commander

20 MSG/CD – 20th Mission Support Group Deputy Commander

20 OSS/OSAA – Chief, Airfield Management or Airfield Operations

20 SFS/CC – 20th Security Forces Squadron Commander

20 SFS/S-2I – 20th Security Forces Squadron Investigations

20 SFS/S-3 – 20th Security Forces Squadron Operations

20 SFS/S-3T – 20th Security Forces Squadron Training

20 SFS/S-5 – 20th Security Forces Squadron Plans & Programs

20 SFS/S-5B – 20th Security Forces Squadron Pass & ID

20 SFS/S-5P – 20th Security Forces Squadron Plans

20 SFS/S5R – 20th Security Forces Squadron Reports & Analysis

20 SFS/S-5S – 20th Security Forces Squadron Installation Security

ADAPT – Alcohol and Drug Abuse Prevention and Treatment

AFI – Air Force Instruction

AFMAN – Air Force Manual

AFOSI – Air Force Office of Special Investigations

AFRIMS – Air Force Records Information Management System

ATV – All Terrain Vehicle

BAC – Blood Alcohol Content

BDOC – Base Defense Operations Center

BrAC – Breath Alcohol Content

BTSWG – Base Traffic Safety Working Group

CE – Civil Engineer

CFR – Code of Federal Regulation

CVB – Central Violations Bureau

DFC – Defense Force Commander

DoD – Department of Defense

DoDI – Department of Defense Instruction

DUI – Driving Under the Influence

FAMCAMP – Family Camping Area

FPCON – Force Protection Condition

GOV – Government Owned Vehicle

IAW – In Accordance With

IMA – Individual Mobilization Augmentee

MSF – Motorcycle Safety Foundation

MTMC-TEA – Military Traffic Management Command Transportation Engineering Agency

NHSPS – National Highway Safety Program Standards

OPR – Office of Primary Responsibility

PCS – Permanent Change of Station

POV – Privately Owned Vehicle

RDS – Records Disposition Schedule

SAFB – Shaw Air Force Base

SCDPS – South Carolina Department of Public Safety

SCPD – Sumter City Police Department

SCSO – Sumter County Sherriff's Office

SFMIS – Security Forces Management Information System

SLED – South Carolina Law Enforcement Division

SVIA – Specialty Vehicle Institute of America

USC – United States Code

VCNCO – Vehicle Control Non Commissioned Officer

VCO – Vehicle Control Officer